

ORIGINAL ARTICLE

What is (the) matter with climate litigation? Law, nature, and the limits of legal technique

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Abstract

This article examines how nature is mediated by law in climate cases. In the Federal Court of Australia decision in *Minister for the Environment v. Sharma* (2022), the court applied a narrow definition of ‘matter of law’ (justiciability), and thereby negated ‘matter in law’ (such as carbon dioxide and ecological destruction). Climate destruction demands the extension of legal categories and obligations such as tort and nuisance. However, rendering matter through law manifests the classical opposition between *nomos* and *physis* (law and nature). By considering the treatment of matter in climate cases, I open a wider discussion about the potentials and limitations of legal technique as a means of mediating nature. Turning to Theodor Adorno’s ‘negative dialectics’, I consider how the negation of nature might be redeemed through the extension of legal concepts. Such legal mediation shows the potential for reorienting the dialectic of law and nature – an urgent means of pursuing planetary justice in the current moment.

1 | INTRODUCTION

‘Approximately twenty-four thousand years ago, a glacier advanced until it reached a large outcropping of rock that now is nothing more than a gentle hill above where the house stands.’

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With these words, the German writer Jenny Erpenbeck begins her compact but powerful novel *Visitation*, featuring a *place*, a house on an ancient lake, as its central character.¹ The enormous pressure and movement of the ice shaped the landscape, and ‘lions, cheetahs and saber-toothed cats fled to more southerly climes’. Millennia would pass before humans appeared and gave the lake a name, ‘*Märkisches Meer, the Sea of the Mark Brandenburg*, but one day it would vanish again, since, like every lake, it too was only temporary – like every hollow shape, this channel existed only to be filled in completely some day’. A house built in the nineteenth century in Brandenburg hosts a series of occupants who displace each other as we move through the history of Germany in the twentieth century – from the Weimar Republic, through the forced migration of its Jewish occupants, the arrival of the Red Army at the end of the Second World War, the construction of the Berlin Wall, and post-unification Germany. In beautifully condensed passages, Erpenbeck achieves what many Western scholars contemplating time and history in the face of ecological destruction have struggled to articulate: that planetary time operates on a scale that renders human events miniscule, and that the conditions for the being-together of people and things is as much a function of geological formations as it is of human agency. As many Indigenous traditions know well, the thingness of nature and human experience operate in different registers of time and space, but they are inseparable. The fleeting character of life and non-life in *Visitation* evokes a sense of how human history and natural history are intertwined. *Visitation* thus offers an instructive allegory for contemplating a key concern of this article: the relation of humans and nature that undergirds the status of matter in climate litigation. How do judicial decisions in climate cases *mediate* matter? How might the juridical articulation of ‘things that matter’ be extended?

I begin with an exemplary case: the Federal Court of Australia decision in *Minister for the Environment v. Sharma* (2022).² Here, the court placed beyond its jurisdiction the undisputed global warming that would result from the increase of carbon dioxide emissions from an expanded coal mine. It reversed the primary judge’s recognition of a novel tortious duty of care placed on the Commonwealth of Australia’s Minister for the Environment by distinguishing ‘matter of law’ (justiciability) from ‘matter in law’ (things, carbon dioxide, or nature brought before the law). Modern law’s malleable legal techniques were not extended to perceive and receive matter in the form of carbon. The court thus turned down the opportunity to address intergenerational responsibility for climate destruction and ensuing suffering. However, the problem is far deeper. The terms in which the court articulated what mattered in law reinscribed the opposition between human and natural orders, reenforcing a binary between *nomos* and *physis* (law and nature). As ever, nature (as matter) was acted on through political and juridical institutions, and served as the backdrop to conflicts about sustainability and the environmental impact of human enterprise. The dialectical relation of law and nature was reiterated by the court in terms where the latter is negated by the former. In this article, I consider how nature as negated matter *in* law may be redeemed.

Sharma epitomizes a growing number of cases before courts that seek to fold a formerly excluded nature into existing legal forms and causes of action. This can be productive, but they

¹ J. Erpenbeck, *Visitation* (2010) trans. S. Bernofsky.

² *Sharma by Her Litigation Representative Sister Marie Brigid Arthur v. Minister for the Environment* [2021] FCA 560; *Minister for the Environment v. Sharma* [2022] FCAFC 35 (on appeal) (hereafter *Sharma* (2021) or (2022), respectively). I am using *Sharma* as an exemplary instance to open a theoretical discussion about the dialectical relation of law and nature. I am not purporting to cover the entire sprawling array of climate litigation. Nor is this article exhaustive on the amorphous notion of ‘rights of nature’ that may refer to the legal standing of non-human animals and things, and the extension of legal personality to various forms of life and non-life. My analysis has implications for each of these aspects of law, but it is beyond the scope of this article to address all of them completely. My primary objective is to extend and enrich the legal theoretical registers by which law’s treatment of nature (as matter) is understood.

often – though not exclusively – focus on protecting nature as a function of human flourishing. Recently, the Grand Chamber of the European Court of Human Rights (ECtHR) in *Verein KlimaSeniorinnen Schweiz v. Switzerland* (2024) affirmed that Article 8 rights to private and family life in the European Convention of Human Rights (ECHR) extend to individuals' health, well-being, and quality of life, and that such rights are infringed if states that are signatories to the ECHR do not take adequate measures to implement greenhouse gas (GHG) reduction targets as set out by the Intergovernmental Panel on Climate Change (IPCC).³ Cases such as this are certainly important for establishing that anthropogenic climate change exists, and that states are responsible for putting in place measures to effectively address it. Juridical devices such as public nuisance and the law of obligations (tort) are also being deployed to address ecological destruction. However, in these cases, nature can all too easily slip into being a backdrop for human well-being. It is that conceit of human-centred articulations of ecological justice that needs to be undone; I contend that 'negative dialectics' can help with that process.⁴

The thingness of matter has been addressed by a more sophisticated scholarly literature than the emaciated discourse of courts. Bruno Latour draws on Yan Thomas' notion of 'matter of concern' in developing the concept of a 'parliament of things',⁵ and Alain Pottage characterizes legal technicality as itself an object.⁶ On the one hand, this assertion of law as *technē*, while providing a range of legal techniques to enhance the legal mediation of things, often leaves the hierarchy of human and nature in place. On the other hand, new materialist thinkers reach beyond law altogether, valorizing the agency of things, but they scarcely touch on a normative register. My approach is distinct from these thinkers, stressing the importance of addressing the negative universal history of law and nature. That is to say, I examine whether the marginalized, superseded, or negated in 'totalizing' historical processes can be redeemed. Put another way, I emphasize the need for an attentiveness to the hierarchical ordering of law and nature not simply by transferring normativity to nature as scholars such as Margaret Davies have done,⁷ but by examining how the negative in a dialectical relation of law and nature can return and prevail. Such negative universal histories would provide a more nuanced account of law's central role in mediating matter.

My wider theoretical concern, drawing on Theodor Adorno and scholars who have advanced his negative dialectics, is to consider how the treatment of nature repeats a persistent totalization of human and natural history.⁸ I explore how this totalization (now called the 'Anthropocene'⁹)

³ *Verein KlimaSeniorinnen Schweiz v. Switzerland* (GC) [2024] ECtHR 304, 53600/20, 9 April 2024.

⁴ This is also why artistic works such as Erpenbeck's *Visitation* are essential in these discussions. They undo the human-centred view of the world and help to conceptualize a planetary sense of time, while also retaining a complex account of destruction enacted by both humans and wider material forces.

⁵ B. Latour, 'From Realpolitik to Dingpolitik or How to Make Things Public' in *Making Things Public: Atmospheres of Democracy*, eds B. Latour and P. Weibel (2005) 14. I am indebted to one of the anonymous reviewers for suggesting that I consider this trajectory.

⁶ A. Pottage, 'Law after Anthropology: Object and Technique in Roman Law' (2014) 31 *Theory, Culture & Society* 147.

⁷ M. Davies, *EcoLaw: Legality, Life, and the Normativity of Nature* (2022).

⁸ H. Johnson, 'Anthropocene as a Negative Universal History' (2019) 3 *Adorno Studies* 48, at 49.

⁹ The term 'Anthropocene' has gained considerable traction in the humanities and social sciences when discussing anthropogenic climate destruction. For discussion of recent developments, see D. Carrington, 'Quest to Declare Anthropocene an Epoch Descends into Epic Row' *Guardian*, 7 March 2024, at <<https://www.theguardian.com/science/2024/mar/07/quest-to-declare-anthropocene-an-epoch-descends-into-epic-row>>; A. Damianos, 'What Was the Anthropocene?' *Critical Legal Thinking*, 8 March 2024, at <<https://criticallegalthinking.com/2024/03/08/what-was-the-anthropocene/>>.

is addressed by materialist thinkers.¹⁰ I then advance a critique of new materialist approaches to matter,¹¹ and close with an account of law's mediatory function, exploring the openings presented in recent climate cases such as *Michael John Smith v. Fonterra Co-Operative Group Ltd* (2024) that have extended the scope of legal categories such as tort and nuisance.¹²

2 | MATTER OF LAW AND MATTER IN LAW

What is the juridical status of nature? This question has been posed and probed in multiple registers, including: the legal standing of non-human life and non-life;¹³ the scope of legal devices such as personhood, tort, and obligation;¹⁴ the ambit of human rights instruments in addressing climate destruction;¹⁵ whether natural entities can be guaranteed in their own right and not merely as concomitants of human flourishing;¹⁶ and the 'proper' authority (judicial or legislative power) that ought to determine the limits of fossil fuel and mineral extraction.¹⁷ These discourses on the juridical status of nature can be rendered in sharper focus by considering how matter is contemplated by law.

For courts steeped in narrowly conceived notions of jurisdiction, a matter is a fact, dispute, or controversy on which the law acts.¹⁸ The difference between matter *of* law (justiciable substance that concerns jurists) and matter *in* law (objects brought before the law for adjudication) has taken on new importance in the face of ecological destruction and climate catastrophes. For those concerned with climate and biodiversity destruction, arguably, the past life of flora in the form of coal, and its future life in the form of carbon dioxide driving anthropogenic climate change, is the matter before the court. As it stands, however, the judicial articulation of matter *of* law struggles to contemplate matter *in* law in a way that can meaningfully address climate destruction. The hierarchical opposition between *nomos* and *physis* enables human-centred exploitation of what is deemed inert nature in ways that are no longer sustainable. Though the status of matter

¹⁰ Prominent materialist works that I consider include J. Bennett, *Vibrant Matter: A Political Ecology of Things* (2010); A. Grear, 'Legal Imaginaries and the Anthropocene: "Of" and "For"' (2020) 31 *Law and Critique* 351; Davies, op. cit., n. 7.

¹¹ For this, I draw on R. A. Lee Jr, *The Thought of Matter: Materialism, Conceptuality, and the Transcendence of Immanence* (2016).

¹² *Michael John Smith v. Fonterra Co-Operative Group Ltd* [2024] NZSC 5.

¹³ C. D. Stone, 'Should Trees Have Standing? Toward Legal Rights for Natural Objects' (1972) 45 *Southern California Law Rev.* 450. See also the Special Issue on the legacy of Stone's article in the *Journal of Human Rights and the Environment*, especially N. Naffine, 'Legal Personality and the Natural World: On the Persistence of the Human Measure of Value' (2012) 3 *J. of Human Rights and the Environment* 68.

¹⁴ E. Mussawir and C. Parsley, 'The Law of Persons Today: At the Margins of Jurisprudence' (2017) 11 *Law and Humanities* 44; Y. Thomas, *Legal Artifices: Ten Essays on Roman Law in the Present Tense* (2021) trans. C. Schütz and A. Schütz, ch. 6; S. Veitch, *Obligations: New Trajectories in Law* (2021).

¹⁵ *Urgenda Foundation v. State of Netherlands* [2015] HAZA C/09/00456689, affirmed by the Supreme Court in *State of Netherlands v. Urgenda* [2019] 19/00135; *Verein KlimaSeniorinnen Schweiz*, op. cit., n. 3.

¹⁶ *Centre for Social Justice Studies et al. v. Presidency of the Republic et al.* [2016] Judgment T-622/16 Constitutional Court of Colombia, 10 November 2016 (hereafter 'Atrato River case').

¹⁷ *Sharma*, op. cit. (2022), n. 2.

¹⁸ For this narrow account of matter under the jurisdiction of the Federal Court of Australia, see J. Allsop, 'An Introduction to the Jurisdiction of the Federal Court of Australia' (2007) 15 *Federal Judicial Scholarship*, at <<http://classic.austlii.edu.au/au/journals/FedJSchol/2007/15.html>>. The significance of this article is enhanced by Allsop's role as an influential Australian judge who was also the Chief Justice of the Federal Court issuing judgment in *Sharma* (2022). I am indebted to Alofipo So'alo Fleur Ramsay for this reference.

is now juridically, politically, and theoretically in flux, nature as matter continues to be conceived in terms of an older constitutional formation, according to which it is the thing acted on to serve human ends.

If there is a symptomatic instance of ‘what is (the) matter with climate litigation?’, it would be the decision on appeal in *Sharma*, decided by the Federal Court of Australia in 2022.¹⁹ *Sharma* was a representative action brought by eight children objecting to the Vickery Extension Project, the expansion of a coal mine in New South Wales. The court was asked to recognize a novel tort: that the Federal Minister for the Environment owes a duty of care to children living today for harms that they will experience in the future, if the Minister approves the expansion of the coal mine. Under the Environment Protection and Biodiversity Conservation Act 1999 (Cth) (EPBC Act), the Minister for the Environment could approve or reject the application once the expansion was deemed a ‘controlled action’. At stake in *Sharma* was the character of matter that could enter the contemplation of courts when the dispute concerned future harms. Also in issue was a novel cause of action: a tort pertaining to future harms. The court had to contend with the question of the responsibility of present generations for harms and injuries that may occur in the future.

At first instance in *Sharma*, Justice Bromberg issued a path-breaking judgment setting out detailed scientific evidence about global warming and climate change. He drew on this evidence to develop a novel duty whereby the Minister has a personal duty, derived from the law of negligence, to take reasonable care to ensure that in executing their duties under the EPBC Act, they avoid causing personal injury or death to all persons under the age of 18 and living in Australia, arising from carbon dioxide emissions into the Earth’s atmosphere. The expert scientific evidence was unchallenged by the government, and set out how the Earth’s average temperatures would reach 4°C above pre-industrial levels by 2100. This could come about in two ways:

first, where the greenhouse effect upon the Earth’s increasing temperature is driven by an approximately linear relationship between increased human emissions of CO₂ and increased temperatures, and *second*, in circumstances where continuing human emissions of CO₂ will result in ‘Earth System’ changes, which diminish the Earth’s current ability to reflect heat, absorb CO₂, and retain CO₂, currently held in carbon sinks, triggering ‘tipping cascades’ which propel the Earth into a 4°C trajectory. That scenario was referred to in the evidence as ‘Hothouse Earth’. Under this scenario, humans will lose the capacity to control climate change and global surface temperatures will continue warming even if human emissions of CO₂ are curtailed.²⁰

The matter that is carbon in the form of coal, and the carbon dioxide emitted when it is burned, was in the contemplation of Bromberg. Despite the contribution of 100 metric tons of carbon dioxide emissions from the expanded coal mine being described as ‘tiny’ in the scale of worldwide global emissions, it was accepted by Bromberg that this could be part of the contribution to the ‘tipping cascades’ that would result in a 4°C increase in temperatures, with the ensuing risk of injury, economic loss, and death.²¹ The judge concluded that once ‘contemporary social conditions and community standards’ are taken into account, ‘a reasonable person in the Minister’s position would foresee the risk and would take reasonable and available steps to eliminate it’.²²

¹⁹ *Sharma*, op. cit. (2022), n. 2.

²⁰ *Sharma*, op. cit. (2021), n. 2, Bromberg J, para. 30, emphasis in original.

²¹ *Id.*, para. 253.

²² *Id.*

If we take a closer look at what frames Bromberg's concern and reasoning, it is a very geographically specific *human* story of harm that may be experienced by *Australian* children living at the time that the litigation commenced. While 'Earth systems', tipping cascades, and carbon sinks are noted, this is only with a view to characterizing the scope of harm that may be done to humans living today as their lives unfold over time. The responsibility attributable to the Minister is also confined to harm done to humans and not to nature. More broadly put, the temporal unfolding of past, present, and future is a very human-centred narrative. It is a human history told through material markers in nature to raise concerns of human intergenerational justice. To that extent, human and natural history, *nomos* and *physis*, are held apart.

Nonetheless, it is worth noting how the human story and its national character is placed alongside a vitalist sense of nature and the natural in Bromberg's judgment:

It is difficult to characterise in a single phrase the devastation that the plausible evidence presented in this proceeding forecasts for the Children. As *Australian* adults know their country, Australia will be lost and the World as we know it gone as well. The *physical environment* will be harsher, far more extreme and devastatingly *brutal when angry*. As for human experience – quality of life, opportunities to partake in *nature's treasures*, the capacity to grow and prosper – all will be greatly diminished. Lives will be cut short. Trauma will be far more common and good health harder to hold and maintain. None of this will be the *fault of nature itself*. It will largely be inflicted by the inaction of this generation of adults, in what might fairly be described as the greatest inter-generational injustice ever inflicted by one generation of humans upon the next.²³

This rhetoric conjures sentiments that are at once noble, desperate, and romantic. Nature is given a heteronomic quality that fleetingly touches on the affective, agential, and vital qualities of the inanimate and non-human.²⁴ Nature is romanticized as 'treasure'. Though agency and vitality are attributed to material processes – the physical environment will be 'devastatingly brutal when angry' – the harm suffered and the injustice inflicted are entirely about humans. In an Ovidian tone, nature has the capacity to bear responsibility ('fault'), but not on this occasion, as none of what might ensue is the 'fault of nature itself'.

I dwell on Bromberg's judgment to show how it makes contact with the materiality and vitality of nature in a context where the account of matter of law is otherwise very narrow. Alongside this matter *in* law, however, the scope and scale of temporality expressed through the problem of justice reiterates human time. Natural history – or planetary time – remains a backdrop to human flourishing or suffering. In a future time, Bromberg argued, the present moment will be judged by what it inflicts: a 3–4°C increase in global temperatures. As I argue below, the decision in *Sharma*, and the decisions in many other climate cases of which it is an exemplary instance, call for renewed attention to the philosophy of the history of nature.

For James Allsop, Chief Justice of the Federal Court presiding in the appeal in *Sharma*, it turned out to be too much matter in court. Allsop read the EPBC Act, which authorizes the Minister, in the context of multiple environmental legislative regimes (state and federal), and concluded that the federal Act excluded the contemplation of 'foreseeability of risk to health

²³ Id., para. 293, emphasis added.

²⁴ On the autonomy and heteronomy of law, see S. Motha, "'My Story, Whose Memory': Notes on the Autonomy and Heteronomy of Law" (2022) 87B *Studies in Law, Politics, and Society* 1.

and safety of people in the future'.²⁵ The issues of 'national environmental significance' that the Minister could contemplate were confined to 'listed threatened species and communities [...] and water resources'.²⁶ Given this construction of the Minister's statutory duty under the EPBC, the materiality of nature could not continue to occupy the precinct of the court or the contemplation of judges. Not only was this matter *in law* out of place in court; so too was consideration of the threat to human safety caused by the increased GHG emissions from the expanded coal mine.²⁷

For Allsop, the responsibility of the Minister was a policy decision more aptly dealt with by the executive branch of government.²⁸ The rest was soporific. In classic liberal constitutional terms, the function of government is to form and implement policy as it is accountable to Parliament and the people.²⁹ The role of judges and the courts is simply to test the legality of government's conduct. In Allsop's view, the novel duty of care that Bromberg, the primary judge, articulated for harms and injuries that are ostensibly yet to occur strayed beyond what is suitable for 'judicial determination'.³⁰ The 'duty' that Allsop was willing to countenance was not a legal duty of care about the foreseeability of harm, but a political duty arising out of the 'relationship of government or governing with the governed'.³¹ In short, what mattered was a myopic social contract that did not come close to articulating the 'natural contract' that seems so essential for these times.³²

In other regions and jurisdictions such as Europe, Latin America, and the Pacific, there have been more bold juridical measures to address climate destruction and the status of what is called nature. Legislative and judicial actions have recognized the independent legal personality of rivers, mountains, and geological formations, thereby beginning to disturb the privileged juridical status of the human. While these steps have not all been directed at addressing climate destruction, the impact that they have had on the dialectical relation of law and nature is worth noting.³³ In Aotearoa/New Zealand, the Te Uwa Tapua (the Whanganui River Claims Settlement) Act 2017 recognized the Whanganui River and surrounding areas as legal persons. In Colombia, the Constitutional Court recognized the Atrato River and surrounding basin as having their own legal rights. As the court put it,

justice for nature must be applied beyond the human scenario and must allow nature to be subject to rights. Under this understanding, the Chamber considers it necessary to take a step forward in the jurisprudence towards the constitutional protection of one of our most important sources of biodiversity: the Atrato River.³⁴

The rights of the Atrato River, while recognized in this landmark case, do not stand alone. The rights of the river and surrounding terrain are undergirded by their connection to human and other ecosystems. Rights of nature are recognized, at least in the reasoning of the Colombian

²⁵ Sharma, op. cit. (2022), n. 2, Allsop J, para. 88.

²⁶ Id.

²⁷ Id., para. 216.

²⁸ Id., para. 103.

²⁹ Judgments such as Allsop's demonstrate the need to shift narrow judicial constraints built on modern imaginaries of sovereignty and law. For a thorough account of this problem of sovereignty in the context of ecological destruction, see D. Matthews, *Earthbound: The Aesthetics of Sovereignty in the Anthropocene* (2021).

³⁰ Sharma, op. cit. (2022), n. 2, Allsop J, para. 237.

³¹ Id., para. 266.

³² See M. Serres, *The Natural Contract* (1995) trans. E. MacArthur and W. Paulson.

³³ Below, I return to consider Thomas' scepticism about the extension of legal personality.

³⁴ Atrato River case, op. cit., n. 16, para. 9.31.

court, as they are a necessary concomitant of humans being connected and interdependent with all living beings on Earth.³⁵

More recently, the Grand Chamber of the ECtHR in *Verein KlimaSeniorinnen Schweiz* affirmed that Article 8 rights are infringed if state signatories to the ECHR do not take adequate measures to reduce and mitigate the effects of GHGs.³⁶ In *Smith*, the Te Kōti Mana Nui Aotearoa/Supreme Court of New Zealand took giant steps in the opposite direction to *Sharma*, explicitly endorsing the argument that GHG emissions are potentially a public nuisance, approving the availability of novel torts, and confirming the treatment of natural organisms and features as entities in their own right.³⁷

This emerging jurisprudence on climate is, however, a long way from recognizing the status of nature that we observe in discourses on matter in the humanities. While matter as such fails to enter the contemplation of law, for new materialists, ‘more-than-human’ entities are imbued with vitality, agency, and potentially their own normativity.³⁸ Both judges and new materialists are seemingly untouched by or even unaware of each other’s rhetoric and priorities. Put simply, they talk past each other. Judges have the excuse of their narrow training and apprenticeship as practitioners before reaching the bench, while most new materialist works pay little attention to – and make little effort to engage with – juridical and normative frameworks. There is a sense that I get in reading the new materialist literature that ‘law in the books’ is too imbued with modernist conceptual architectures of sovereigns, subjects, and all-too-human social formations, and too corrupted by imperialism, extractivism, and biopolitical domination, for the proponents of this ‘new’ thinking to directly engage with it. While judges largely fail to adequately cognize nature, it seems that new materialists largely fail to pay attention to law. Matter and law then continue to be held apart.³⁹

There is a third strand of legal theorization, however – one that is focused on law itself as matter. Indeed, this strand that treats law as an assemblage of objects and techniques may chime well with the recent expansion of forms and causes of action such as tort, nuisance, and human rights. What, however, are the potentials and limitations of such legal technique?

3 | LAW AS MATTER AND THE LIMITS OF *TECHNĒ*

An alternative lineage for the relation of matter and law – indeed, for law itself to be treated as one among multiple objects that matter – has been developed by a group of scholars who examine the technique and technicality of legal forms, processes, and causes of action informed by the history of Roman law.⁴⁰ They have usefully given an account of law where it is one among many different objects in an assemblage. Abandoning the ‘old constitution’ where nature is separated from politics, a notion of ‘political ecology’ is promoted by Latour, drawing attention to the potential

³⁵ It is noteworthy, however, that the development of an ecocentric jurisprudence in the court’s reasoning pivoted on the primacy of human and biocentric concerns: *id.*, para 9.27.

³⁶ *Verein KlimaSeniorinnen Schweiz*, *op. cit.*, n. 3.

³⁷ *Smith*, *op. cit.*, n. 12. Below, I return to consider whether cases such as *Smith* manifest the potential of reconfiguring the status of matter through the courts.

³⁸ See Bennett, *op. cit.*, n. 10; Grear, *op. cit.*, n. 10; Davies, *op. cit.*, n. 7.

³⁹ I return to this argument below with a view to developing it further.

⁴⁰ Latour, *op. cit.*, n. 5; Pottage, *op. cit.*, n. 6; Thomas, *op. cit.*, n. 14, ch. 6.

in the etymology and history of that revered ancient concept of politics, *res publica*.⁴¹ *Res publica* connotes a 'public thing', and Latour, drawing on Thomas, emphasizes that the *Ding*, thing, *res*, or *reus* has the capacity to bring human and non-human protagonists into relations, arguments, and debates.⁴² Latour suggests *Dingpolitik* as a German neologism that would sustain an 'object-oriented democracy' or 'parliament of things'.⁴³ In this formulation, it is objects themselves that gather actors around a thing: 'Each object gathers around itself a different assembly of relevant parties';⁴⁴ these are 'the *matters* that matter in the *res* that creates a public around it'.⁴⁵ It is then not 'matters-of-fact', the epistemological objects, that matter, but rather 'matters-of-concern'⁴⁶ around which an aesthetics and assembly – what Latour calls a parliament of things – could be devised.⁴⁷ However, this does not mean that all (new) actors (such as rivers, animals, mountains, and things) are granted legal status or personality. Indeed, that is possibly the problem of an aesthetics of what matters: it begs the question of normativity. As we will see, the extension of legal personality to non-human actors or things is strenuously challenged by Thomas, the influential theorist and historian of Roman law who has inspired a focus on legal form and technique.⁴⁸

There are many good reasons to doubt that the extension of legal subjectivity and personality to things or animals will avert climate destruction or related ills. For one thing, those who promote this line of argument often assume a linear progressive notion of universalizable legal subjectivity. Thomas was responding to such claims for the personification of nature, including those of Christopher Stone, who champions the legal standing of the non-human animal or thing to 'speak' in court in his article 'Should Trees Have Standing? Toward Legal Rights for Natural Objects'.⁴⁹ The problem of universality and totalization (which I will shortly discuss through Adorno) is certainly present in Stone's rhetoric. His ambitious attempt to weave human history with natural history can be observed from the first sentence of his article, which refers to Charles Darwin's *Descent of Man*. The story that Stone draws from Darwin has a progressive developmental tone and content. It invokes a man, originally selfish, with regard only for himself and his nearest and dearest, whose sympathies become 'more tender and widely diffused, extending to the men of all races, to the imbecile, maimed, and other useless members of society, and finally the lower animals'.⁵⁰ The history of the law, Stone asserts, has a 'parallel development'.⁵¹ It is not only 'matter in human form' that has come to be rights bearing; it is also

⁴¹ B. Latour, *Politics of Nature: How to Bring the Sciences into Democracy* (2004) 54.

⁴² Id., citing Y. Thomas, 'Res, chose et patrimoine (note sur le rapport sujet-objet en droit romain)' (1980) 25 *Archives de Philosophie du Droit* 413.

⁴³ Latour, op. cit., n. 5, p. 14.

⁴⁴ Id., p. 15.

⁴⁵ Id., p. 16.

⁴⁶ Id., p. 19.

⁴⁷ Id., p. 23.

⁴⁸ This still leaves open the possibility of norms called forth by an aesthetics of assembled things, but that is not my focus here.

⁴⁹ Thomas directly addresses Stone's influential article on legal rights for natural objects (Stone, op. cit., n. 13); see Thomas, op. cit., n. 14, pp. 116–117, 142 n. 23. Thomas concludes: 'Let us pass over the scenography of personification, which in itself solves nothing, since it boils down to a question of techniques of representation': id., p. 117.

⁵⁰ Stone, id., citing C. Darwin, *Descent of Man* (1874, 2nd edn) 119, 120–121.

⁵¹ Stone, id., p. 450. Stone later outlines how children as well as 'prisoners, aliens, women (especially of the married variety), the insane, Blacks, foetuses, and Indians' have variously been granted personhood or legal rights in United States law: id., p. 451.

‘inanimate rights holders’ such as corporations, ships, and other legal entities.⁵² Stone’s discourse aims to demonstrate that the denial of rights to the non-human (and the very unthinkability of the extension of rights) is at first attributed to nature, until the bifurcation of human and nature is overcome:

Throughout legal history, each successive extension of rights to some new entity has been, theretofore, a bit unthinkable. We are inclined to suppose the rightlessness of rightless ‘things’ to be a decree of Nature, not a legal convention acting in support of the status quo.⁵³

It is with this universalist notion of history that Stone goes on to argue that all ‘natural objects’ (such as forests, oceans, and rivers) and the ‘natural environment as a whole’ should be granted legal rights.⁵⁴ Indeed, a major plank of Stone’s thesis is that a society in which ‘rivers have legal rights’ would ‘evolve a different legal system than one which did not employ that expression’.⁵⁵

Counteracting such universalism and the proliferation of legal subjectivities is a key objective of Thomas’ critique of the extension of legal personality. For Thomas, the ostensible mischief of extending legal personality is that every ‘egoistic’ drive and ‘desire’ of a legal subject (human, for now) would be validated by a legal right that would transform a seemingly stable idea of nature.⁵⁶ While I agree with his scepticism about the extension of legal subjectivities, I am troubled by the conservative treatment of gender and kinship in Thomas’ work, and thus query the assumption that legal technique can be plucked out of its social and political milieu and deployed with relative neutrality as a pure form or pure means to guard the interests of the ‘more-than-human’ and things.⁵⁷ My hunch is that the treatment of legal technique and forms as ideologically neutral, coupled with the shift (albeit legitimate) away from modern concepts of the social, results in an articulation of Roman law that is ethically and politically unmoored.⁵⁸ Moreover, the division of *nomos* and *physis* seems to remain firmly in place in at least some accounts of this retrofitted legal technique.⁵⁹

Alain Pottage, building on Latour, gives a fuller elaboration, explaining that Thomas’ historical reconstruction of the Roman legal form of thing (*res*)

⁵² Id., p. 452.

⁵³ Id., p. 453.

⁵⁴ Id., p. 456.

⁵⁵ Id., p. 489. In a Special Issue marking the 40th anniversary of his article, Stone reaffirms his assertion of an evolutionary impact on social consciousness that would follow from granting legal rights to natural objects: C. D. Stone, ‘Response to Commentators’ (2012) 3 *J. of Human Rights and the Environment* 100.

⁵⁶ Thomas, op. cit., n. 14, pp. 112–114.

⁵⁷ See especially the treatment of abortion and transgender subjectivities in id. Thomas’ other examples, in brief, include the recognition of transgender rights to change birth sex (which he argues reverses the ‘historical event of a gendered birth’) and surrogacy (which he regards as turning filiation into a contract): id., pp. 113–115. The problem as Thomas sees it is ‘purely subjective motives’ (the examples just outlined) being recognized, when the law is meant to express ‘generalisable entitlements’ that are ‘supposedly “common to all” without reference to subjectivity’: id., p. 116. Law, he asserts, is a ‘separating institution’ that is meant to keep ‘desire’ and ‘right’ apart: id., p. 116.

⁵⁸ For an expression of concern about the conservative orientation of Thomas, Pierre Legendre, Jacques Lacan, and Claude Lévi-Strauss, see Pottage, op. cit., n. 6, p. 158.

⁵⁹ This point applies especially to Thomas, who is discussed at greater length below.

was a metonym for the trial process and legal issue which the parties were disputing through that procedure – ‘*res* meant first and foremost the trial, or the issue in dispute’ (Thomas, 1980: 415). Thing took the form of a *res de qua agitur*, or ‘thing in question’.⁶⁰

Latour also builds on Thomas’ archaeology of Roman law, not only through the notion of *Dingpolitik* as the sociality of assemblages, but also through the manner in which a thing (*res*) is framed through a ‘particular art of enunciation that was materialized in legal formulae: “*c’est la formule qui crée le droit*” (Thomas, 1974: 112)’.⁶¹ These formulaic legal techniques had the rigidity of forms of action that made their way into English law. Pottage cites Frederic Maitland’s famed account of the forms of action where ‘if there is no remedy there is no wrong’.⁶²

The account of law that unfolds through this excavation of Roman legal techniques is one that is emptied of context, agency, and intention: ‘Roman law treated acts as things in themselves rather than an expression of subjective intention. The result was a kind of “eclipse of agency” [*un dépassement de l’agir*] (Thomas, 1977: 67)’.⁶³ Legal actions themselves were regarded as things; the form of action had a ‘thingness’.⁶⁴ Pottage goes on to distinguish this Roman law notion of legal forms and frames from that of the modern legal forms as an instrumental means to an end:

[W]hereas the modern understanding of law takes legal forms and institutions to be means to social ends, or as expressions of broader social processes, the set of law-objects existed and were employed without reference to some abstract social function or normative principle. Actions were species without a genus; there was no abstract universal instance called ‘law’ that was expressed in, or that traversed, these frames.⁶⁵

Law was then not a form of enunciating and thus knowing things in the world. The forms were a technique of making ‘effective legal constructions’ rather than fictions or metaphors.⁶⁶ Legal forms and actions thus carry an openness, and it is certainly that potential that was closed down in cases such as *Sharma*, and more fruitfully opened in *Smith*.

The thrust of Thomas’ line of argument is that nature might be better protected not as a person, but as a thing with a status bestowed by a legal form.⁶⁷ The human is at the centre of the ‘fiction that nature is a subject’ as they are in the ‘fiction that nature is an object’.⁶⁸ The difference between the two, Thomas claims, is ideological. Matter and the concepts that represent it are, of course, at the heart of the work done by metaphysicians. My argument is that the relative place of law and nature, *nomos* and *physis*, is also a metaphysical problem of the relation between thought and matter, and not a mere ideological difference between subject and object.

⁶⁰ Pottage, op. cit., n. 6, p. 150, citing Thomas, op. cit., n. 42.

⁶¹ Id., p. 151, citing Y. Thomas, ‘La langue du droit romain, problèmes et methods’ (1974) 19 *Archives de Philosophie du Droit* 103.

⁶² Id., p. 152.

⁶³ Id., p. 153, citing Y. Thomas, ‘Acte, agent, société: sur l’homme coupable dans la pensée juridique romaine’ (1977) 22 *Archives de Philosophie du Droit* 67.

⁶⁴ Id., p. 154.

⁶⁵ Id., p. 155.

⁶⁶ Id., pp. 156–157.

⁶⁷ Thomas, op. cit., n. 14, p. 117.

⁶⁸ Id.

The alternative approach to the personification of nature or the extension of legal subjectivity suggested by Thomas is to use existing legal techniques that are capable of imputing obligations or constructing the inalienability of things. The *ius commune*, for example, could render things outside the market. However, how does this apply to nature that is already alienated, commodified, or rendered as property? Things could be made ‘sacred’ or ‘public’ by legal artifices.⁶⁹ This would maintain what Thomas regards as an essential difference between a ‘real or natural subject’ and an ‘artificial or instituted subject’.⁷⁰ The crux of Thomas’ concern is to retain a sense of legal subjectivity as no more than a constructed legal artifice – a device seemingly unchanged from ancient times. The legal artefact and excesses of psychological and social realities, he argues, should not be confused.⁷¹ For Thomas, this ‘technical spirit’ of law can be found in the Latin *ars*, which translates from the Greek *technē*.⁷² Law is, as Thomas argues, an ‘enterprise of mastering nature and empowering the autonomy of the subject’.⁷³ This is the source of his scepticism and opposition to the extension of legal personality and subjectivity in the pursuit of new human desires. There are fictions sustained by the law that cannot be found in nature. This is, of course, true. The question is why anyone would have confidence in techniques of legal artifice for liberating nature when thus far they have only enabled its domination and destruction.

Legal technique or *technē* discussed here shows the potential in the extension of causes of action such as tort and nuisance at stake in cases such as *Sharma, Smith*, and other forms of action. However, these techniques need to be considered alongside the strong division of *nomos* and *physis*. *Technē* in the scholarship discussed above lies heavily on the side of *nomos*. My suggestion is that *technē* needs to be seen as mediating a dialectic of human and natural history. We could view legal technique in possibly its best light as a form of mediation of matter. Whether such mediation can redeem nature is a wider political and juridical concern for which different philosophical resources must be sought. Those resources, I argue, can be found in philosophies of history that take up and seek to redeem the negation of nature. It is to that material that I now turn.

4 | HUMAN AND NATURAL HISTORY

While the destructiveness of man as the purportedly universal subject of history is evident everywhere, how will nature (as thing or matter) be redeemed in this dialectical relation? This is the question that underlies the problem of the legal mediation of matter with which I have been engaging. The problem of matter *in* law concerns the juridical registration of the relation of human and natural history. That relation is a dialectic of domination. However, the negative element in this dialectic is not totally expunged in this relation of subordination. Our concern should be with the conditions under which the negative may return in new and varied formations.

For centuries, nature has been treated as an inert backdrop to human affairs in Western thought. Nature as thing or matter has, in other words, been subordinated to human narratives and ends. An epoch termed the Anthropocene poses questions about temporal scale, and whether a totalizing ‘new universal history’ of humans and/or nature is necessary or even possible. The crucial

⁶⁹ Id., p. 119.

⁷⁰ Id., p. 122.

⁷¹ Id., p. 123.

⁷² Id., pp. 134–135.

⁷³ Id., p. 137.

point here is that the notion of the Anthropocene (suspending the question of whether it is a suitable geological or rhetorical category) focuses our minds on the relation between human and natural history; that is, it summons a *universal* planetary phenomenon at the same time as it provokes questions about whether such universalization is apt. Additionally, placing the human at the centre of planetary history all too hastily assumes a continuity between the agency of humans and natural history, and thereby invokes the relation of *nomos* and *physis*.

Two thinkers have helped to address this problem of universal history in planetary terms – Harriet Johnson and Dipesh Chakrabarty – and they both build on Adorno's philosophy of history.⁷⁴ In Western political philosophy, the human and nature have historically been presented in dialectical opposition. Adorno identified this problem very early through his account of the dialectic of identity and non-identity where nature acts as the 'negative' that does not weigh on human calculations.⁷⁵ Adorno's notion of 'negative universal history' presents productive possibilities, and it is his insights that have been amplified by Johnson and Chakrabarty, who have opened this line of inquiry in the context of the Anthropocene.

Climate litigation such as *Sharma* re-poses this older problem of identity and difference because such cases take place in the context of a totalizing phenomenon called the Anthropocene. The particularity that is represented as the totality in universalist accounts excludes another particularity (also referred to as 'non-identity' by Adorno).⁷⁶ The excluded particularity will in turn oppose its exclusion from the totality. As Chakrabarty puts it, drawing from Adorno, '[a] "negative universal history" is therefore one that allows the particular to express its resistance to its imbrication in the totality without denying being so imbricated'.⁷⁷ In other words, the negative is part of the dialectic that forms the totality, and negative universal history is an expression of the significance of the excluded non-identity (difference) in the dialectical process that constitutes universal totalities. For Adorno, it is not a case of the totality being 'in the wrong', and the negated particularity being 'in the right'.⁷⁸ As Johnson puts it, '[n]egation is not renunciation: it preserves aspects of the thing it criticizes'.⁷⁹ The key notion for Adorno when thinking about the negated particularity is 'discontinuity':

The task of a dialectical philosophy of history, then, is to keep both these conceptions in mind – that of discontinuity and that of universal history. This means that we should not think in alternatives: we should not say history is continuity or history is discontinuity. We must say instead that history is highly continuous in discontinuity, in what I once referred to as the permanence of catastrophe.⁸⁰

This notion of negative universal history helps us to grapple with the status of nature as the excluded or non-identity in human-centred history by pointing to how the Anthropocene as a totality also includes what it negates. Later, I suggest that we should strive to recover this negative, and we are seeing signs of this in cases such as *Smith*, discussed below. Additionally, as

⁷⁴ Johnson, op. cit., n. 8; D. Chakrabarty, *The Climate of History in a Planetary Age* (2021).

⁷⁵ T. Adorno, "'Negative" Universal History' in *History and Freedom: Lectures 1964–1965*, T. Adorno, ed. R. Tiedemann (2006) trans. R. Livingstone, 89.

⁷⁶ Chakrabarty, op. cit., n. 74, p. 47.

⁷⁷ Id.

⁷⁸ Adorno, op. cit., n. 75, p. 95.

⁷⁹ Johnson, op. cit., n. 8, p. 49.

⁸⁰ Adorno, op. cit., n. 75, p. 92, emphasis in original.

Johnson emphasizes, Adorno was also attentive to the catastrophic domination of nature through modes of production.⁸¹ However, drawing on Anna Tsing's study of Matsutake mushroom pickers, Johnson warns that Adorno's focus on catastrophe should not lead to a focus on global environmental risk management, but on the disruptive local ruptures and 'rowdy cosmopolitanisms' that disrupt global social relations.⁸²

Discontinuities can be found in stories told in a planetary scale and time, such as Erpenbeck's *Visitation* with which I opened this article. In such stories, there are excluded human others, as well as the recovery of a different order of time. This new planetary history is not only of humans. Drawing on Adorno's *History and Freedom*, and Johnson's treatment of it, Chakrabarty puts it as follows:

A 'negative universal history' in the age of the Anthropocene cannot simply be about humans alone. At the same time, it cannot be about a totality, for then it would simply reproduce all the problems that led Adorno to formulate his propositions around the figure of the negative. Just as in human history, here too, that which is nonidentical to totality has to be able to express itself through resisting its complete incorporation into the totality even as it is so incorporated – thus the project of 'provincialising Europe'. Similarly, in the case of the 'negative universal history' of the Anthropocene, the non-human should be able to make itself heard without having to be anthropomorphised or without having to speak the language of humans.⁸³

Chakrabarty's objective here could aptly be termed 'provincializing the Anthropocene' – that is, a history of the Anthropocene that shows how the Anthropocene as a totality fails.⁸⁴ It may also be understood as provincializing the human. A historical register that preserves the negative opens a different engagement with legal technique. The things in *technē* need to be placed within the contingency of their emergence.

5 | READING SMITH AS NEGATIVE DIALECTIC

As I suggested above, legal technique or *technē* might be viewed in its best light as the mediation of matter. Assessing such mediation, however, needs a historical register through which the relation of *nomos* and *physis* can be posed and analysed not simply as an ideological variable but as what is at stake in adjudicative and judicial practices. The recent decision of the Te Kōti Mana Nui Aotearoa/Supreme Court of New Zealand in *Smith* is an exemplary instance of the potential of legal technique and mediation through the law of tort and nuisance.⁸⁵ Smith is an elder of Ngāpuhi and Ngāti Kahu, and the spokesperson of a national forum of tribal elders, the Iwi

⁸¹ Johnson, op. cit., n. 8, pp. 49, 59–61.

⁸² Id., pp. 60–61. Johnson characterizes Tsing's account of Matsutake mushroom pickers and their connections as negative in the universal accounts of capitalist relations, citing A. L. Tsing, 'Ordinary Catastrophe: Outsourcing Risk in Supply-Chain Capitalism' in *Futures of Modernity: Challenges for Cosmopolitical Thought and Practice*, eds M. Heinlein et al. (2012) 51.

⁸³ Chakrabarty, op. cit., n. 74, pp. 47–48.

⁸⁴ See my discussion with Chakrabarty on the *Countersign* podcast: S. Motha and D. Chakrabarty, *Countersign: Provincializing the Anthropocene* (2022), at <<https://countersignsapodcast.com/podcasts/provincializing-the-anthropocene/>>.

⁸⁵ *Smith*, op. cit., n. 12.

Chairs Forum.⁸⁶ He claimed ‘customary interests in land and other resources and sites situated in or around Mahinepua in Northland’;⁸⁷ and alleged that the respondents have materially contributed to the climate crisis through their release of GHGs such as methane and nitrogen dioxide into the atmosphere.⁸⁸

The *materiality* of climate change – whether it can be apprehended and potentially attributed to the respondents – was also at issue. Drawing on the most recent science from the IPCC, Smith argued that various benchmarks for the reduction of GHG emissions need to be met between 2025 and 2050.⁸⁹ By 2050, GHG emissions must reach net zero. Smith pleaded that these targets could not be met without the emissions of non-state actors, such as the respondents, being addressed.⁹⁰ The list of respondents in the case makes manifest the range of ways in which the human and corporate exploitation of nature is at stake in climate litigation, as well as what it means to bring matter into the precinct of the court and judicial contemplation. Fonterra operates eight dairy factories in Aotearoa/New Zealand and burns coal to generate energy. Other respondents operate coal- and gas-fired power stations; dairy farms with cows releasing methane and nitrogen-based fertilizer releasing nitrogen dioxide; oil refineries; and the largest open-cast mine in Aotearoa/New Zealand, producing bituminous, coking, and thermal coal that is mostly exported to China, where it is used in the production of steel.⁹¹ Smith alleged that together, in 2020/2021, the respondents were responsible for more than ‘one-third of New Zealand’s total GHG emissions’.⁹² The corporate exploitation of nature to serve human ends was unambiguously placed before the court.

The causes of action in *Smith* were threefold: public nuisance, negligence, and a novel tort of climate system damage.⁹³ The respondents had successfully applied to strike out Smith’s proceedings on the basis that it raised ‘no reasonably arguable cause of action’ – a decision that had been upheld by the Court of Appeal.⁹⁴ The Te Kōti Mana Nui Aotearoa/Supreme Court of New Zealand devoted most of its attention to the first cause of action, public nuisance. Once this was restored as a cause of action, the Te Kōti Mana Nui Aotearoa/Supreme Court of New Zealand remitted the matter for trial on all grounds pleaded without making any conclusive determination on the facts. Here, the role of legal technique as mediation of matter – through the causes of action – as well as the respondents’ attempt to strike out the claim come to the fore.

It is noteworthy that a key submission of the respondents was that

the Court ought not to engage in a judicial response to climate change, because it is not equipped to design or implement one. The problem is polycentric and political; there are a broad range of interests and trade-offs at issue; and complex scientific and economic judgments are required.⁹⁵

⁸⁶ Id., para. 3.

⁸⁷ Id., para. 50.

⁸⁸ Id., paras 51–52.

⁸⁹ Id., para. 53.

⁹⁰ Id., para. 54.

⁹¹ Id., para. 51.

⁹² Id., para. 52.

⁹³ Id., paras 62–72.

⁹⁴ Id., para. 73.

⁹⁵ Id., para. 131.

To do otherwise, the respondents argued, would ‘damage the integrity of tort law’.⁹⁶ Among the authorities cited for this argument was the Federal Court of Australia decision in *Sharma* (2022).⁹⁷ The respondents’ submission echoed what had held sway in Australia: that it is for the legislature and the executive, not the judiciary, to make policy, regulate GHG emissions, and take other steps to respond to climate destruction.

The *Smith* case illustrates a far richer and more sophisticated range of legal concepts that may be deployed to cognize the causes, and contest the responses, to global warming and the loss of biodiversity. Among the submissions made by the respondents on public nuisance was the claim that it ought to be treated as analogous with private nuisance.⁹⁸ The respondents argued that the ‘requirement for “emanation” – transferral of the nuisance – creates a relational causal connection between plaintiff and defendant, while enabling identification of a finite class of defendants over which the court could have jurisdiction’.⁹⁹ Put another way, the crux of the respondents’ argument was that they could not be held responsible for climate change, which is a global and universal phenomenon. According to the respondents’ submission, as ‘climate change is a “phenomenon caused by the global combination of all emission activities over decades”, the respondents’ future net emissions, either individually or collectively, cannot be said to “cause the nuisance”’.¹⁰⁰

The causes of action and the strike-out motion are technical legal devices that turn on a dialectic of universal and particular, human and nature, and identity and non-identity. The court’s mediation of matter is the site of these dialectical processes. At issue in *Smith* was the character of climate change as a totalization – the problem that we considered through Adorno above. The respondents asserted that global warming is a universal phenomenon that cannot be attributed to specific Aotearoa/New Zealand emitters of GHGs. Levelled against this assertion was the particular knowledge, injury, and suffering of a Māori community, and the application of Māori *tikanga* (customary law). Put another way, it could be argued that the plaintiff was asserting a negative universal history in the face of the totalization of the Anthropocene asserted by the respondents. I focus on this point as it repeats the tension that I discussed earlier concerning the problem of universality represented by the Anthropocene, and the potential for claiming a particular non-identity, as Adorno put it, in relation to that totality. The respondents submitted that ‘there is no principled reason why materiality should be assessed by reference to New Zealand, rather than global, emissions’.¹⁰¹ It was claimed that the respondents are not among the world’s ‘major emitters’, and that *Smith* should have brought his claim ‘against foreign corporations and state entities’.¹⁰²

The common law has previously dealt with crises such as industrial and other accidents during the nineteenth century; it has developed useful measures such as the neighbour principle and the duty of care in cases such as *Donoghue v. Stephenson*.¹⁰³ Crucially, the court in *Smith* reiterated that *tikanga* would inform the formulation of tort claims; since the ‘form of loss is an essential

⁹⁶ *Id.*

⁹⁷ *Id.*, para. 131, n. 191. The Federal Court of Australia in *Sharma* (2022) had itself relied on the Court of Appeal in *Smith*: see *Sharma*, op. cit. (2022), n. 2, Allsop J, paras 255–259.

⁹⁸ *Smith*, id., para. 134.

⁹⁹ *Id.*

¹⁰⁰ *Id.*

¹⁰¹ *Id.*, para. 137.

¹⁰² *Id.*

¹⁰³ *Donoghue v. Stephenson* [1932] AC 562.

fact, in addressing this part of the claim the trial court will be required to engage with *tikanga*.¹⁰⁴ This application of *tikanga* also has long-standing authority in Aotearoa/New Zealand dating back to the nineteenth century and the Treaty of Waitangi.¹⁰⁵ The court saved its most perspicacious instruction to the trial court until the end:

[W]hatever the cause of action, the trial court will need to grapple with the fact that Mr Smith purports to bring proceedings not merely as an alleged proprietor who has suffered loss, but as a *kaitiaki* acting on behalf of the *whenua, wai* and *moana* – *distinct entities in their own right*. And it must consider some *tikanga* conceptions of loss that are neither physical nor economic. In other words, addressing and assessing matters of *tikanga* simply cannot be avoided.¹⁰⁶

In this single and conclusive passage, the Supreme Court of New Zealand created an opening for a rich range of possibilities beyond what in other jurisdictions might be regarded as nature or mere matter. *Whenua, wai*, and *moana* refer to a complex range of Māori concepts that include ground, soil, land, water, streams, creeks, rivers, and oceans.¹⁰⁷ Addressing these entities and their dependencies by way of Māori *tikanga* will shift the scope and content of laws applied in climate cases.

The decision in *Smith* is consistent with Frans-Willem Korsten's argument that the expansion of legal personhood is unhelpful; what is needed is legal definition of the entity per se, which is accompanied by an obligation to do justice to it.¹⁰⁸ Korsten's example of an entity that needs to be addressed in this way is soil, which includes worms and fungi that live in it. Drawing on the French verb *honorer* (to honour), conveying the imperative to do justice to what is being honoured, Korsten argues that 'if we come to consider soil as an organic, living entity in itself, this must lead to another attitude with regard to the soil, and by implication to a legal definition that does justice to this'.¹⁰⁹ There is every indication that the application of Māori *tikanga* in Aotearoa/New Zealand will supply such definitions and open a route to the question of justice for entities of nature previously rendered inert by the common law. Entities that have hitherto occupied the subordinate status of matter *in law* will come to have a distinct status and protection. However, these possibilities also turn on the concepts and ideas that represent what is called matter.

6 | REDEEMING MATTER

Just as Adorno's notion of negative universal history shows how the marginalized element in a totalizing history could be retrieved through the negative, so it is with the problem of accessing matter through the concepts of thought. In *Negative Dialectics*, Adorno put it as follows:

¹⁰⁴ *Smith*, op. cit., n. 12, paras 177, 182.

¹⁰⁵ *Id.*, paras 184–187.

¹⁰⁶ *Id.*, para. 188, emphasis added.

¹⁰⁷ While this move in *Smith* is specific to Aotearoa/New Zealand, there are emerging discourses and legal categories, such as the one proposed by Korsten, that can extend these openings in other jurisdictions.

¹⁰⁸ F.-W. Korsten, 'Soil-Justice: Using Literature and Culture in Search for the Ground of Legal Definitions' inaugural professorial lecture, Leiden University, 15 March 2024, 6 (copy with author).

¹⁰⁹ *Id.*, p. 13.

As the thinker immerses himself in what faces him to begin with, in the concept, and as he perceives its imminently antinomical character, he clings to the idea of something beyond contradiction. The antithesis of thought to whatever is heterogeneous to thought is reproduced in thought itself, as its imminent contradiction. Reciprocal criticism of the universal and of the particular; identifying acts of judgment whether the concept does justice to what it covers, and whether the particular fulfils its concept – these constitute the medium of thinking about the nonidentity of particular and concept.¹¹⁰

The non-identical relation (incongruence) of thought and the thing that is conceptualized entails a reciprocity. It is this movement of thinking between concept and thing that enables critique. However, does the existence of a medium (a thought or a legal concept) for identifying the problem actually resolve the issue of non-identity? In a juridical register, does the language of ‘justice’, or refreshed legal techniques, as Thomas and Pottage suggest, enable a different treatment of matter? The problem that arises here is how accessible or communicable the alterity of the thing is to the languages and logics of law.

Jane Bennett elaborates this problem in her early account of the ‘force of things’ when she points to Adorno’s attentiveness to the ‘gap between concept and thing’: ‘For Adorno this gap is ineradicable, and the most that can be said with confidence about the thing is that it eludes capture by the concept, that there is always a “nonidentity” between it and any representation.’¹¹¹ That is not to say that accessing matter or the thing is impossible. Bennett quotes Adorno from *Negative Dialectics*: ‘What we may call the thing itself is not positively and immediately at hand. He who wants to know it must think more, not less.’¹¹² This ‘thinking more’ comes through the method of negative dialectics where Adorno teaches us that the ‘inadequacy of representation’ needs to be ‘accentuated’ and given meaning.¹¹³ Matter and things will always leave a ‘remainder’ that exceeds our thought and control. Bennett, however, distinguishes the vital materialists’ ethical project from that of Adorno. For Adorno, what was required was to reconcile oneself to the limits of human knowledge. For Bennett, the ethical task is to ‘cultivate the ability to discern nonhuman vitality, to become perceptually open to it’.¹¹⁴ This move accepts Adorno’s ‘pedagogy’ for detecting non-identity – a paradoxical move that is still conceptual, intellectual, aesthetic, and playful.¹¹⁵ What Adorno and the vitalists share, Bennett argues, is an ‘urge to cultivate a more careful attentiveness to the out-side’.¹¹⁶

Anna Gearar relies heavily on Bennett’s formulation in articulating her influential distinction between legal imaginaries ‘of’ and ‘for’ the Anthropocene: ‘Law of the Anthropocene is [...] law as coloniality and neo-coloniality – law complicit in ongoing forms of eco-violence, economic predation and the unparalleled imposition of precarity on humans and non-humans alike’.¹¹⁷ In seeking ‘an alternative legal imaginary for the Anthropocene’, Gearar turns to Bennett:

¹¹⁰ T. Adorno, *Negative Dialectics* (1973) trans E. B. Ashton, 146.

¹¹¹ Bennett, op. cit., n. 10, p. 13.

¹¹² Id.

¹¹³ Id., p. 14.

¹¹⁴ Id.

¹¹⁵ Id., pp. 14–15.

¹¹⁶ Id., p. 17.

¹¹⁷ Gearar, op. cit., n. 10, p. 356.

[I]n response to the reductionism of the body to ‘mere matter’ in the onto-epistemic foundations of the legal imaginary of the Anthropocene, I turn first to an account transforming matter itself into a lively, agentic field of significance. Bennett, in her book *Vibrant Matter*, presents an argument supporting the idea that all matter – including inorganic matter and the artefactual – is lively and agentic in the broad sense that there is a ‘capacity of things – edibles, commodities, storms, metals – not only to impede or block the will and designs of humans but also to act as quasi agents or forces with trajectories, propensities or tendencies of their own’.¹¹⁸

Where is the *law* for the Anthropocene here? Law arrives by way of an account of matter lending itself to ‘sympoietic normativities’ (sympoiesis denoting a ‘making with’) drawn from Donna Haraway’s account of the ‘Chthulucene’ – an alternative imaginary in which the ‘porous, intercorporeal entanglement of complex interacting energies and agentic forces at all scales’ is emphasized.¹¹⁹ These are ideas presented to generate an alternative legal imaginary. The objective is the disavowal of a colonial-capitalist subject asserting a hierarchy between human action and “‘matter” as *extensa*’.¹²⁰ However, this account of ‘staying with the trouble’, in Haraway’s terms, by eschewing what is termed an ‘aspirational juridical holism’¹²¹ leaves me wondering how ‘entangled matter’ can be addressed as such by courts in climate litigation.

There are rich attempts to pluralize norms beyond the focus on human legal systems. Davies draws her conception of norms widely to include any telos or direction of non-human life and non-life.¹²² A growing number of thinkers working on anthropogenic climate change and the Anthropocene have welcomed this expanded conception of normativity by a legal philosopher of considerable influence. Davies draws from a wide range of research in biological science and the eco-humanities. One concern that I have, however, is that Davies does not account for the ‘event’ or encounter where normative regimes clash, or where they refuse to, or are unable to, be cognizant of each other. Put another way, norms are not neutral or inconsequential in their impact (including through indifference) on what is outside their contemplation. The direction and orientation of *nomoi* have a bearing, and bear down on, life and non-life with other normative frameworks. In other words, the conflict of norms requires immediate attention once normative systems are pluralized.

To be fair, how courts address plural legal imaginaries has not been the focus of Bennett, Grear, Davies, and others. However, there is an imperative for critical legal scholarship to more directly address the problem of matter as it is presented in courts. This, to my mind, takes us to the question of how matter is mediated by thought, and likewise by law. The question of medium and mediation then returns us to the more modest proposal from Adorno with which this section began. That is, the non-identity of a concept (or legal technique) with the matter that it mediates remains in play.

The function of law in cases such as *Sharma*, *Smith*, and others (as with other problems concerning justiciability) is to mediate the status of what is brought before it – in this case,

¹¹⁸ Id., p. 357, citing Bennett, op. cit., n. 10.

¹¹⁹ Id., p. 359.

¹²⁰ Id., p. 363.

¹²¹ Id.

¹²² Davies, op. cit., n. 10. See also my interview with Davies on the *Countersign* podcast: S. Motha and M. Davies, *Countersign: EcoLaw* (2022), at <<https://countersignisapodcast.com/podcasts/ecolaw/>>.

nature or carbon as matter.¹²³ The character of this mediation, and how it can be pushed and extended beyond current limits, calls for much more work. Pursuing this immensely challenging problem would benefit from the insights on conceiving matter offered by Richard A. Lee.¹²⁴

In an avowedly metaphysical register, Lee characterizes ‘materialist philosophy’ as setting out from the ‘reality of material things in order to insist on their priority over thought’.¹²⁵ His inquiry started with trying to read Thomas Hobbes’ *De Corpore* as an attempt at materialist philosophy. However, he then encountered a problem, in Hobbes and elsewhere, that the existence of a material thing needs to emerge from somewhere, be posited, or be thought. He puts the methodological problem of materialist philosophy as follows:

[P]hilosophy is a way of thinking about something and yet matter is not just the thought of it but the *very thing thought*. There is, therefore, an irreducible difference between thought and matter that will always trouble the philosophy that attempts to think matter as prior. In short, materialism seems impossible.¹²⁶

Lee’s book *The Thought of Matter* takes this problem seriously and engages in thinking some paths through it. For Lee, ‘[m]atter is that which is other than thought’.¹²⁷ This feature is what Lee calls ‘materiality’.¹²⁸ This does not mean that all that is material or matter is thinkable. Of course, matter can be encountered, engaged, and experienced in ways other than thought – as ‘sensation, digestion, affection, physical interaction’.¹²⁹ Lee insists, however, that sensation and other modes of experience are not philosophy. The crucial aspect of a philosophical approach to matter is that ‘it can provide a critical analysis in ways that sensation, digestion, affection, and so on, do not’.¹³⁰ Referring to Aristotle’s *Nichomachean Ethics*, Lee argues that one can eat a chicken, but the ‘act of eating does not always allow me to understand whether it is good (in whatever way) to eat a chicken’.¹³¹ It is the task of thought and philosophy, in Lee’s approach to metaphysics, to provide a critical understanding of the world, and an answer to this problem of ‘the good’. A materialist philosophy in Lee’s terms would prioritize the ‘otherness of matter to thought but also think the relation of thought to matter so as to allow a critical engagement’.¹³² It is this double gesture – of recognizing the otherness of matter but also thinking thought’s relation to the thing thought – that would be instructive for how law mediates matter *in* law.

¹²³ For a discussion of how law functions to mediate what is otherwise asserted to be ‘bare’ (such as ‘bare life’ or ‘bare sovereignty’), see S. Motha, *Archiving Sovereignty: Law, History, Violence* (2018) 37.

¹²⁴ Lee, op. cit., n. 11. See also my discussion with Lee on the *Countersign* podcast: S. Motha and R. A. Lee, *Countersign: What Is the Matter with New Materialism?* (2023), at <<https://countersignisapodcast.com/podcasts/what-is-the-matter-with-new-materialism/>>.

¹²⁵ Lee, id., p. 1.

¹²⁶ Id., p. 2, emphasis in original.

¹²⁷ Id.

¹²⁸ Id.

¹²⁹ Id.

¹³⁰ Id., pp. 2–3.

¹³¹ Id., p. 3.

¹³² Id.

The philosophical question for Lee is how to *redeem* the existence of matter when it is thought: this how, recalling Adorno, is ‘always a question of the medium’.¹³³ Thought is a medium through which objects are given, even when the insistence is that these objects exist outside such givenness, and through which even ‘nonmediated existence is mediated’.¹³⁴ The crucial question, Lee emphasizes, is to determine how a way of being that is other than thought (materiality) can be thought. This attentiveness to thought as a medium is a productive way to also think about how ‘matter *in* law, which also exists outside juridically recognized categories and subjectivities, might be addressed by law. Law, like thought, is a medium. Law mediates matter *in* law.

The seemingly insurmountable task of accessing the thing in itself creates an enormous challenge in climate litigation. Representing matter as a condition or concomitant of human flourishing (as we have seen in the Atrato River and *Verein KlimaSeniorinnen Schweiz* cases) is one way to protect or conserve nature, but this leaves human dominion tempered rather than unseated. The binary of *nomos* and *physis* remains in place. My contention is that law, like ‘thought of matter’ as set out by Lee, must be placed on a footing where it is understood as mediating matter. This is precisely the encounter between law and matter that the court in *Sharma* refused to recognize. What we have seen in cases such as *Sharma* is a failure to recognize how categories such as matter *of* law work to neglect the matter brought before the court.

Pluralizing actors and normativities as new materialist thinkers have done does not, to my mind, sufficiently ‘stay with the trouble’. As things stand, the entangled matter and post-human kinships imagined by new materialists remain heavily exposed to extractive plunder and destruction. While new materialist scholarship has served to de-objectivize nature, there remains a problem of revising the juridical status of matter. It is precisely this problem that I have tried to highlight through the notion of matter *in* law, where the ethical and political demand can be addressed directly to judges who formulate and sustain colonial-capitalist formations through jurisdictional accounts of what matters to law (that is, through the notion of matter *of* law).

7 | CONCLUSION

I have argued that conceptualizing harm across time in climate cases manifests a problem of universality – one that is rendered through an assertion of difference between human and natural history. Understanding and undoing this opposition is central to climate justice. As things currently stand, human suffering and the destruction of nature continue to be conceptually held apart in climate litigation. Many of the concepts and categories deployed in response to climate destruction also anthropomorphize nature, and seek to transform non-human animals or things into rights-bearing subjects or persons.

The distinction between matter *of* law and matter *in* law, I have argued, is the means by which courts continue to differentiate between *nomos* and *physis*. This is a differentiation applied in an ‘old constitution’ and human-centred social contract, but not one that is simply undone by extending legal personality, agency, or normative capacity to what has been called nature. Through the work of Adorno, Johnson, and Chakrabarty, I have shown how the universal manifested in the opposition between human and nature, and repeated in the totalization termed the ‘Anthropocene’, retains a negative or non-identity. It is that negative or non-identity that needs to be

¹³³ Id., p. 4.

¹³⁴ Id., p. 5.

redeemed. The status and vitality of this negative has informed and driven the work of influential new materialist thinkers such as Bennett. While this work is important and inspiring, I have pointed to the problem of deriving and sustaining a normative register through new materialist thinking. Thought and matter, I have argued through Lee, are irreducible to one another, and this poses challenges for a materialism that grapples with juridical encounters with matter. Thought as a medium that engages with matter, I have suggested, can be extended to how legal devices such as nuisance and tort are deployed when courts encounter matter *in* law. Encounters between law and matter, similar to thought and matter, manifest an opening and demonstrate a process by which what is called nature will be mediated by courts. Admitting that such a mediation is taking place is only a start. It is worth recalling Erpenbeck's insight in *Visitation* – that human reasoning, institutions, and processes remain short lived and will in time be 'filled in' by what is called nature.

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